

May 1, 2024

1:30 P.M. Civil Case Management

23CV46913	AMERICAN EXPRESS NATIONAL BANK v. WEATHERBY	No Case Management statements on file. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 1:30 p.m. in Dept. 4.
23CV47039	BERKSHIRE HATHAWAY HOMESTATE INS. CO.v TODD	Upon review of the file, the matter is served but no Answer has been filed. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 1:30 p.m. in Dept. 4.
23CV46931	BT FARMS v. PURE CALAVERA, LLC	Proofs of Service noted. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 1:30 p.m. in Dept. 4.
22CF14033	CAVALRY SPV I, LLC v. TINDELL	The matter has been served. If no responsive pleading is filed, Plaintiff will file default and seek default judgment. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 1:30 p.m. in Dept. 4.
23CV46824	CHAMBERLAIN et al v. CALAVERAS COUNTY BOARD OF SUPERVISORS, et al	The plaintiff must properly serve Summons and Complaint on the defendants. The next Case Management Conference (CMC) is set for July 17, 2024, at 1:30 p.m. in Dept. 4.
23CV46823	CHAMBERLAIN v. CHASE MANHATTAN BANK, et al	The plaintiff must properly serve Summons and Complaint on the defendants. The next Case Management Conference (CMC) is set for July 17, 2024, at 1:30 p.m. in Dept. 4.
23CV47128	DANIEL MIRANDA BAIL BONDS v. FARNSWORTH	The plaintiff has filed a Request for Default. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 1:30 p.m. in Dept. 4.
23CF14106	DISCOVER BANK v. NAVARRO	Court has reviewed Plaintiff's Declaration. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 1:30 p.m. in Dept. 4.
23CV46907	ENCKE v. MIEROP	Both parties state that discovery is ongoing. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 1:30 p.m. in Dept. 4.
23CV46905	GIFFIN v. VASCONCELLOS	The plaintiff's counsel states he will be filing a motion to withdraw based on a conflict of interest. Court is unclear what the status of some defendants is in a partition action, or why parties are waiting until 2025 to undertake discovery. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 1:30 p.m. in Dept. 4.
23CV46836	GUZZETTA v. REDINGER	The plaintiff must serve the Amended Complaint on the defendant. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 1:30 p.m. in Dept. 4.
23CF14105	JEFFERSON CAPITAL SYSTEMS LLC v. HOOE	The plaintiff has not complied with the timeframe set out in CRC 3.740. The last action by Plaintiff was a Declaration of Non-Service filed on April 3, 2023. No application for substituted service has been requested.

		Unless a Case Management statement or appearance is received before the Case Management Conference, explaining the lack of prosecution, this matter is DISMISSED.
23CV47054	LUJAN v. SANDHU	A review of Case Management statements describes discovery to have been initiated and is ongoing. The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 1:30 p.m. in Dept. 4.
23CF47054	LVNV FUNDING LLC v. ROTHENBERG	The plaintiff has not complied with the timeframe set out in CRC 3.740. The plaintiff has filed no pleading since the complaint on March 16, 2023. Unless a Case Management statement or appearance is received before the Case Management Conference explaining the lack of prosecution, this matter is DISMISSED.
23CF14109	LVNV FUNDING LLC v. ROTHENBERG	The plaintiff has not complied with the timeframe set out in CRC 3.740. The last action by Plaintiff was a Declaration of Non-Service filed on April 3, 2023. Unless a Case Management statement or appearance is received before the Case Management Conference, explaining the lack of prosecution, this matter is DISMISSED.
23CV47125	PONTE v. PERREIRA,	The matter appears to be in the discovery stage. The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 1:30 p.m. in Dept. 4.
22CV45940	ROBINSON v. TURPEN	The matter appears to be in the discovery stage. The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 1:30 p.m. in Dept. 4.
23CV46906	RODRIGUEZ v. WORLDMARK ANGELS CAMP HOTEL	Answer and Jury Fees filed, Case Management statements indicate parties are conducting discovery. The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 1:30 p.m. in Dept. 4.
22CV46224	SARKIS v. VERHALEN	An answer was filed, and Case Management statements indicate parties are conducting discovery. The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 1:30 p.m. in Dept. 4.
21CV45655	MURPHY v. WINCO HOLDINGS, INC.	This matter was to be set as an OSC: Dismissal for today's hearing, but notice was not sent plaintiff. An OSC re: Dismissal and the next Case Management Conference (CMC) is set for Oct. 16, 2024, at 1:30 p.m. in Dept. 4. Court to notify the plaintiff.
21CV45488	STATE FARM GENERAL INS. CO. v. THIS & THAT DISCOUNT STORE, INC.	Plaintiff is taking supplemental discovery. The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 1:30 p.m. in Dept. 4. A Mandatory Settlement Conference will be set at this CMC.
22CV46406	WOOD v. OSTERMILLER	Plaintiff must serve this matter. The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 1:30 p.m. in Dept. 4.

2:00 P.M. Family Law Case Management

23FL47038	ANDERSON v. ANDERSON	The court notes a Proof of Service has been filed. The respondent needs to file a Response by the next Case Management Conference (CMC) or the petitioner files a default or dismissal. The next CMC is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
21PA45249	AUSTIN v. BENNETT	The court notes Stipulation and Order incorporating findings from the July 25, 2023 hearing. The petitioner's counsel is ordered to prepare the stipulation and order and submit it to the court together with the FL-250 (Judgment) and FL-190 (Notice of Entry of Judgment), to conclude this matter. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
23FL47122	BOBTYCKI v. GAFFNEY	Petitioner has entered a stipulation and waiver final declaration of disclosure (FL-144). However, the respondent did not file a Preliminary Declaration. Do parties contemplate a Marital Settlement Agreement and Entry of Judgment? The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
23FL47050	BODE v. BODE	The Court notes that the parties successfully resolved issues at Mediation. Parties need to both file declarations of Disclosure. For assistance, please contact the Self-Help Center. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
23FL47041	BROGLIO v. BROGLIO	Proof of Service noted. The respondent needs to file a Response. If no Response is filed by the next Case Management Conference (CMC), the petitioner shall file Default or Dismissal. The next CMC is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
23FL47048	BUSSEL v. BUSSEL	Proof of Service noted. The respondent needs to file a Response. If no Response is filed by the next Case Management Conference (CMC), the petitioner shall file Default or Dismissal. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
22FL46118	COOPER v. COOPER	Upon review of the file, the parties last appeared at Case Management Conference (CMC) on May 31, 2023, where parties said they were working on a Marital Settlement Agreement. The next CMC is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4, parties are to attend so that the Mandatory Settlement Conference can be set. Court to provide notice to parties.

23FL46799	DELISLE v. ARNEST	Mediation was partially successful, but follow-up session set for June 18, 2024. The next Case Management Conference (CMC) is set for June 26, 2024, at 2:00 p.m. in Dept. 4.
22FL46443	FORMATI v. FORMATI	RFO for reduction of visitation to be heard June 6, 2024. Petitioner has filed a Proof of Service; however, Respondent has not filed a Response. The petitioner is referred to the Self-Help Center to file a default or a dismissal. Alternately, the Respondent is referred to the Self-Help Center to file a Response. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
22FL46443	FRANCIS v. FRANCIS	Petitioner is to file & serve a Preliminary Declaration of Disclosure before the next Case Management Conference (CMC) set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
23FL46715	GARRETT v GARRETT	Upon review of the file, a Proof of Service is on file. The respondent needs to file a Response. If no Response is filed, the Petitioner is to file default or dismissal. This matter awaits entry of judgment. The Self-Help Center can aid any non-represented party The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
21FL45587	GROMEK v. GROMEK	Petitioner and Respondent are ordered to serve and file their Preliminary Declarations of Disclosure (FL-141) before the next hearing. The Self-Help Center can aid with any non-represented party. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
23FL46547	HEINE v. HEINE	Parties were ordered at the last three CMCs to file their preliminary declarations of disclosure (FL-141) before the next CMC. None have been filed. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
23FL46716	HURLEY v. HURLEY	Upon review of the file, a Proof of Service is on file. This matter awaits A Response, but the petitioner can file a default and seek entry of judgment. The Self-Help Center can aid any non-represented party. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
22FL46396	JOHNSON v. JOHNSON	Review Hearing for custody and visitation issues to be heard May 14, 2024. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
21PA45369	LEONARD v. LATINA	Petitioner has requested a "two-week" continuance of the Case Management Conference (CMC). Granted. The CMC is set for May 14, 2024, at 2:00 p.m. in Dept. 4.

22FL46214	LOWELL v. LOWELL	The court notes an active file with RFO to modify spousal support on for hearing June 4, 2024. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
23FL46710	RODGERS v. RODGERS	Upon review of the file, this matter needs to be served on the Respondent for the Court to proceed. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
22FL46461	RODRIGUEZ v. RODRIGUEZ	Upon review of the file, the Court notes no Response has been filed and there is no appearance by Respondent. Petitioner is joining a second Employee Benefit Plan. The petitioner must file a Dismissal or Default if a response has not been filed. The next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4.
19FL44071	SCOTT v SCOTT	Petitioner has filed a proof of service; however, a Response has not been filed. The petitioner is to file a default or a dismissal prior to the next Case Management Conference (CMC) is set for Sept. 4, 2024, at 2:00 p.m. in Dept. 4. Petitioner is referred to the Self-Help Center for assistance. Additionally, the Petitioner is to file an amended Preliminary Declaration of Disclosure. Court to provide notice of this Minute Order.
24PA47167	SHIELDS v. HANN	The court notes an active file with RFO to set Child Custody, Visitation and Support for May 28, 2024. Parties need to file Declarations of Disclosure. The Self-Help Center can aid any non-represented party, i.e., petitioner. The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 2:00 p.m. in Dept. 4.
21FL45640	SHUWAY v. SHUWAY	Upon review of file, it appears from the respondent's filing of FL-130 (Appearance, Stipulation and Waiver) and parties' FL-144 (Stipulation and Waiver of Final Declaration of Disclosure) and statements at last Case Management Conference (CMC) that parties are endeavoring to resolve this matter. Parties are referred to the Self-Help Legal Center for assistance with filing a marriage settlement agreement. Parties are reminded that issues related to children must be addressed. The next CMC is set for Sept. 11, 2024, at 2:00 p.m. in Dept. 4.
22FL46193	TALLMAN v. TALLMAN	The matter was settled at Mandatory Settlement Conference on Nov. 15, 2023. The court wishes to know if parties are complying with terms. Petitioner to file Judgment (FI-180) and Notice of Entry of Judgment (FL-190). The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 2:00 p.m. in Dept. 4.

19PA44509	TAYLOR v. CELERINO	Upon review of file, court notes petition filed December 31, 2019 and served on Feb. 26, 2020. No response filed. Petitioner to file default or dismissal by the next Case Management Conference (CMC) that is set for Sept. 11, 2024, at 2:00 p.m. in Dept. 4. If there are no filings by the next CMC, this matter will be then set for OSC re: Dismissal. Court to provide notice.
21PA45333	WASHBURN v. KNUDSON	Proof of service was filed on Feb. 21, 2023, but no response is on file. Court notes Request for Order to determine custody and visitation and a Notice of Orientation and Mediation. The next Case Management Conference (CMC) is set for Sept. 11, 2024, at 2:00 p.m. in Dept. 4.
22FL46265	WOOD v. KOCH	Petitioner and Respondent are to file a Preliminary Declaration of Disclosure prior to the next Case Management Conference (CMC) that is set for Sept. 11, 2024, at 2:00 p.m. in Dept. 4.